

HOUSE No. 2162**The Commonwealth of Massachusetts**

PRESENTED BY:

Jeffrey N. Roy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to compliance with the prevailing wage laws of the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Jeffrey N. Roy</i>	<i>10th Norfolk</i>	<i>1/9/2025</i>
<i>Chynah Tyler</i>	<i>7th Suffolk</i>	<i>2/18/2025</i>
<i>Paul McMurtry</i>	<i>11th Norfolk</i>	<i>2/18/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/21/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>2/21/2025</i>
<i>William F. MacGregor</i>	<i>10th Suffolk</i>	<i>2/21/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>2/21/2025</i>
<i>Rob Consalvo</i>	<i>14th Suffolk</i>	<i>2/21/2025</i>
<i>Richard G. Wells, Jr.</i>	<i>7th Norfolk</i>	<i>2/21/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>2/21/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>2/21/2025</i>
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>3/4/2025</i>
<i>Kathleen R. LaNatra</i>	<i>12th Plymouth</i>	<i>3/4/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>3/4/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>3/4/2025</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>3/4/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/4/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/4/2025</i>

<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>3/4/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/4/2025</i>
<i>Daniel M. Donahue</i>	<i>16th Worcester</i>	<i>3/19/2025</i>
<i>Christopher J. Worrell</i>	<i>5th Suffolk</i>	<i>3/19/2025</i>
<i>Patricia A. Duffy</i>	<i>5th Hampden</i>	<i>3/19/2025</i>
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>3/19/2025</i>
<i>Kevin G. Honan</i>	<i>17th Suffolk</i>	<i>3/19/2025</i>
<i>Adrian C. Madaro</i>	<i>1st Suffolk</i>	<i>3/19/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>3/19/2025</i>
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>3/19/2025</i>
<i>Erika Uytterhoeven</i>	<i>27th Middlesex</i>	<i>3/19/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>3/26/2025</i>
<i>Steven J. Ouellette</i>	<i>8th Bristol</i>	<i>3/27/2025</i>
<i>William C. Galvin</i>	<i>6th Norfolk</i>	<i>3/28/2025</i>
<i>Michael P. Kushmerek</i>	<i>3rd Worcester</i>	<i>3/28/2025</i>
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>3/28/2025</i>
<i>Jack Patrick Lewis</i>	<i>7th Middlesex</i>	<i>4/14/2025</i>
<i>Mark D. Sylvia</i>	<i>10th Bristol</i>	<i>4/14/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>4/14/2025</i>
<i>Paul J. Donato</i>	<i>35th Middlesex</i>	<i>4/14/2025</i>
<i>David Biele</i>	<i>4th Suffolk</i>	<i>4/14/2025</i>
<i>Thomas W. Moakley</i>	<i>Barnstable, Dukes and Nantucket</i>	<i>4/14/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/14/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/14/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>4/14/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>4/14/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>4/22/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>4/28/2025</i>
<i>Priscila S. Sousa</i>	<i>6th Middlesex</i>	<i>5/20/2025</i>
<i>Bridget Plouffe</i>	<i>9th Plymouth</i>	<i>6/24/2025</i>
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>6/24/2025</i>
<i>Edward R. Philips</i>	<i>8th Norfolk</i>	<i>6/24/2025</i>
<i>Tackey Chan</i>	<i>2nd Norfolk</i>	<i>6/24/2025</i>
<i>Rita A. Mendes</i>	<i>11th Plymouth</i>	<i>6/24/2025</i>
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>6/24/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/24/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>6/24/2025</i>
<i>Mark J. Cusack</i>	<i>5th Norfolk</i>	<i>7/29/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>9/5/2025</i>

<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>10/23/2025</i>
<i>Hannah Bowen</i>	<i>6th Essex</i>	<i>10/23/2025</i>
<i>Christopher M. Markey</i>	<i>9th Bristol</i>	<i>10/23/2025</i>
<i>Norman J. Orrall</i>	<i>12th Bristol</i>	<i>10/23/2025</i>
<i>Kip A. Diggs</i>	<i>2nd Barnstable</i>	<i>10/23/2025</i>
<i>James J. O'Day</i>	<i>14th Worcester</i>	<i>10/23/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>10/29/2025</i>
<i>Richard M. Haggerty</i>	<i>30th Middlesex</i>	<i>10/29/2025</i>
<i>Carlos González</i>	<i>10th Hampden</i>	<i>10/29/2025</i>
<i>Kenneth I. Gordon</i>	<i>21st Middlesex</i>	<i>10/29/2025</i>
<i>Natalie M. Blais</i>	<i>1st Franklin</i>	<i>10/29/2025</i>
<i>Jeffrey Rosario Turco</i>	<i>19th Suffolk</i>	<i>10/29/2025</i>
<i>Samantha Montaña</i>	<i>15th Suffolk</i>	<i>10/29/2025</i>
<i>Kate Donaghue</i>	<i>19th Worcester</i>	<i>10/29/2025</i>
<i>Judith A. Garcia</i>	<i>11th Suffolk</i>	<i>12/23/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>12/23/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>1/14/2026</i>

HOUSE No. 2162

By Representative Roy of Franklin, a petition (accompanied by bill, House, No. 2162) of Jeffrey N. Roy and others relative to compliance with prevailing wage laws for offsite fabrication. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1943 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to compliance with the prevailing wage laws of the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 27D of chapter 149 of the General Laws is hereby amended by
2 inserting at the end thereof the following new paragraphs:-

3 For the purposes of this section, the words “construction” and “constructed” shall include
4 offsite fabrication work for any project covered by this section. In such cases, the wage required
5 under this chapter shall be paid for such work and the requirements of Section 27B of chapter
6 149 shall apply to such work, including, but not limited to, weekly submission of certified
7 payroll records and an accompanying statement made under penalties of perjury. Penalties
8 provided under Section 27C of chapter 149 shall apply to such work.

9 The term “offsite fabrication” means products or items that are: (a) produced specifically
10 for a qualified project; (b) considered to be non-standard items; and (c) produced at an offsite
11 location, including, but not limited to those made or consisting of fabricated pipe, piping
12 materials or fixtures, electrical wiring, sheet metal materials, or any systems, components or
13 modular units made of any of the foregoing. Nothing in the foregoing definition of “offsite
14 fabrication” is intended to restrict application of Section 26 of chapter 149 of the General Laws
15 or to prevent the Commonwealth, or a county, town, authority or district thereof contracting for
16 the construction of public works from giving preference to offsite fabrication performed at an
17 offsite location within a specific geographical area.

18 SECTION 2. Section 27B of chapter 149 of the General Laws is hereby amended by
19 inserting at the end thereof the following new paragraph:

20 For any offsite fabrication work subject to this section, the contractor, subcontractor or
21 public body shall include a section in their weekly certified prevailing wage records that
22 provides: (a) the name and address of the manufacturer, shop or other type of prefabrication
23 facility where the fabrication work was performed; and (b) the name, address, and occupational
24 classifications of each mechanic, apprentice, laborer or other employee employed in the
25 performance of such work, the hours worked by, and wages paid to, each such employee.

26 SECTION 3. This act shall take effect upon its passage.